

# **MACHINES IMPORTATION CONTRACT.**

This **Machine Importation Contract** ("Agreement") is made on the **20<sup>th</sup>** day of **May 2026**, between:

## **1. Importer:**

Name: Diana Chepkirui

ID number: 39460195

Mobile No: 0792821836

Business Name: Kira Imports

## **2. Buyer/Customer:**

Name: Kavisu Arnold Mutuku

ID number: 36051620

Mobile No: 0724919205

Business Name: Jokika Engineering LTD

Together referred to as **"the Parties."**

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## **1. Purpose of the Agreement**

The purpose of this Agreement is to outline the terms under which the Importer agrees to import, ship, customs clear and supply the following machine(s) to the buyer/customer.

## **2. Description of the Machines**

### **a) NAIL MAKING MACHINE**

- Quantity:1
- Nail production range: 40-110mm
- Maximum diameter: 5.0mm
- Nail production speed. 200/min
- Total machine weight: 1900kg
- Motor power: 4.0kw-4kw
- Overall dimensions: 2300\*1390\*1345mm
- Packaging size: 2.4\*1.6\*1.6



## b) CUTTER GRINDER

- Quantity: 1
- To Grind the nail cutter
- when it gets blunt
- Including grinding wheel
- for diamond cutter
- grinding
- Motor: 0.75 kw
- Weight: 200kg
- Size: 800x800x1000
- Condition: New



## c) NAIL MOULD MACHINE



#### d) PIN PUNCH



### 3. Purchase Price and Payment Terms

- Total Price/cost for the Four equipment: **KES 602,700**
- Payment Method: bank transfer
- Payment Schedule:
  - Upfront payment for the machines buying price cost + importers service fee on contract signing standing at **KES 652,700** .
  - Balance of shipping fee upon equipment arrival, at the point of collection standing at **KES 327,800**.
- Cost as outlined in the below table:

| EQUIPMENT NAME      | BUYING PRICE   | SHIPPING FEE   | IMPORTERS SERVICE FEE |
|---------------------|----------------|----------------|-----------------------|
| NAIL MAKING MACHINE | 495,000        | 295,000        | 45,000                |
| CUTTER GRINDER      | 100,220        | 32,800         | 5,000                 |
| NAIL MOULD MACHINE  | 5,000          | -              | -                     |
| PIN PUNCH           | 2,500          | -              | -                     |
| TOTALS              | <b>602,700</b> | <b>327,800</b> | <b>50,000</b>         |

### 4. Incoterms / Delivery Terms

- Lead-times: 35-45 days
- Shipping Method: via sea except for the handheld printer that's by air.
- Collection terms: self-collection at the Mombasa Road warehouse.

### 5. Inspection and Testing

- Pre-shipment inspection and testing (Yes/No): Yes
- Inspection conducted by: Importer in liaison with the Chinese equipment manufacturer/supplier

## 6. Risk and Insurance

Insurance responsibility during shipping and risk of loss or damage passes to the Importer according to the chosen Incoterm until the equipment is collected by the buyer.

## 7. Dispute Resolution

Any disputes arising from this Agreement shall be resolved through:

- Negotiation
- Mediation/Arbitration
- Courts of Kenya

## 8. Termination

Either party may terminate this Agreement if the other party:

- breaches material terms,
- fails to deliver/pay within agreed timelines,
- becomes insolvent.

Monies already paid to the importer shall be refunded in full upon:

Failure to deliver the equipment as ordered, and of the specifications as ordered, and as per the agreed lead times with any naturally unavoidable delays, shall be communicated to the buyer immediately for alignment.

## 9. Governing Law

This Agreement shall be governed by the laws of Kenya.

## 10. Signatures Importer

Name: \_\_\_\_\_

Signature: \_\_\_\_\_

Date: \_\_\_\_\_

### Buyer

Name: \_\_\_\_\_

Signature: \_\_\_\_\_

Date: \_\_\_\_\_

### Buyer's referee/witness

Name: \_\_\_\_\_

Signature: \_\_\_\_\_

Date: \_\_\_\_\_

ID No. \_\_\_\_\_